

# CONTRACT: Consulting Agreement - Deloitte

## Contract Details

|               |            |
|---------------|------------|
| Contract ID   | C-003      |
| Vendor        | Deloitte   |
| Expiry Date   | 2024-12-31 |
| Version       | v3.0       |
| Status        | Expired    |
| Risk Level    | Low        |
| Created By    | Anjali Rao |
| Uploaded Date | 2022-12-01 |

## Contract Content

### CONSULTING AGREEMENT - DELOITTE

Contract ID: C-003

This Consulting Agreement ("Agreement") is entered into as of the Effective Date specified below by and between Deloitte Consulting LLP, a Delaware limited liability partnership with its principal office located at [Insert Address] ("Vendor"), and [Insert Client Name], a [Insert Entity Type] with its principal office located at [Insert Address] ("Client"). Vendor and Client may be referred to individually as a "Party" and collectively as the "Parties."

#### 1. DEFINITIONS

For purposes of this Agreement, the following terms shall have the meanings set forth below:

- (a) "Effective Date" means the date on which this Agreement is executed by both Parties.
- (b) "Services" means the consulting services described in Section 3 of this Agreement.
- (c) "Deliverables" means all reports, analyses, documents, and other materials prepared by Vendor in connection with the Services.
- (d) "Milestones" means the specific deadlines or completion dates for Deliverables as set forth in Exhibit A.
- (e) "Confidential Information" means any non-public information disclosed by one Party to the other Party in connection with this Agreement, whether oral, written, or electronic.

#### 2. SCOPE OF SERVICES

Vendor shall provide consulting services to Client as described in Exhibit A, which is incorporated herein by reference. Vendor shall perform the Services in accordance with the Milestones and Deliverables

specified in Exhibit A. Vendor shall use commercially reasonable efforts to complete the Services in a professional and timely manner.

### 3. TERM AND TERMINATION

(a) Term. This Agreement shall commence on the Effective Date and shall remain in effect until [Insert End Date] or until terminated in accordance with this Section.

(b) Termination for Convenience. Either Party may terminate this Agreement upon thirty (30) days' prior written notice to the other Party.

(c) Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party materially breaches any provision of this Agreement and fails to cure such breach within fifteen (15) days of receiving written notice of the breach.

(d) Effect of Termination. Upon termination of this Agreement, Vendor shall cease all Services and deliver to Client any completed or partially completed Deliverables.

### 4. FEES AND PAYMENT

(a) Fees. Client shall pay Vendor the fees set forth in Exhibit B for the Services provided under this Agreement.

(b) Payment Terms. Vendor shall invoice Client on a monthly basis, and Client shall pay all undisputed invoices within thirty (30) days of receipt.

(c) Late Payments. Any amounts not paid when due shall accrue interest at the rate of one percent (1%) per month or the maximum rate permitted by law, whichever is lower.

### 5. CONFIDENTIALITY

(a) Obligations. Each Party agrees to maintain the confidentiality of the other Party's Confidential Information and to use such information solely for the purposes of this Agreement.

(b) Exceptions. Confidential Information does not include information that is publicly available, independently developed by the receiving Party, or disclosed pursuant to legal requirements.

### 6. DATA PROTECTION

Vendor shall comply with all applicable data protection laws and regulations in connection with the Services. Vendor shall implement appropriate technical and organizational measures to protect any personal data processed under this Agreement.

### 7. INTELLECTUAL PROPERTY

(a) Ownership. All intellectual property rights in the Deliverables shall be owned by Client upon payment of all fees due under this Agreement.

(b) License. Vendor grants Client a perpetual, royalty-free, non-exclusive license to use any pre-existing intellectual property incorporated into the Deliverables.

### 8. WARRANTIES

(a) Vendor represents and warrants that the Services will be performed in a professional and workmanlike manner.

(b) Vendor does not warrant that the Deliverables will be error-free or fit for a particular purpose.

### 9. LIABILITY LIMITATION

To the maximum extent permitted by law, Vendor's total liability under this Agreement shall not exceed the total fees paid by Client to Vendor under this Agreement. Neither Party shall be liable for any indirect, incidental, or consequential damages arising out of or related to this Agreement.

## 10. INDEMNITY

(a) Vendor Indemnity. Vendor shall indemnify and hold harmless Client from any claims, damages, or liabilities arising from Vendor's breach of this Agreement or negligence in performing the Services.

(b) Client Indemnity. Client shall indemnify and hold harmless Vendor from any claims, damages, or liabilities arising from Client's use of the Deliverables or breach of this Agreement.

## 11. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of [Insert State], without regard to its conflict of laws principles.

## 12. DISPUTE RESOLUTION

(a) Negotiation. The Parties shall attempt to resolve any disputes arising under this Agreement through good faith negotiations.

(b) Arbitration. If the Parties are unable to resolve a dispute through negotiation, the dispute shall be submitted to binding arbitration in accordance with the rules of the American Arbitration Association.

## 13. MISCELLANEOUS

(a) Entire Agreement. This Agreement constitutes the entire agreement between the Parties and supersedes all prior agreements and understandings.

(b) Amendments. This Agreement may only be amended by a written agreement signed by both Parties.

(c) Assignment. Neither Party may assign this Agreement without the prior written consent of the other Party.

(d) Notices. All notices under this Agreement shall be in writing and delivered to the addresses specified above.

(e) Severability. If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

[Insert Client Name]

By: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

Deloitte Consulting LLP

By: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_